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# Fort Bragg City Council to consider keeping easy outdoor dining rules

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FORT BRAGG, 5/31/23 — The Fort Bragg City Council will be asked to keep outdoor dining easier, while the rest of the county is headed back to pre-pandemic rules for tents.

The Fort Bragg City Council Community Development committee, a council standing committee, has recommended making it easier for businesses to offer outside dining on a long-term basis. In 2020, with an immediate need for social distancing, tents, patio covers and other outdoor dining were allowed without obtaining the usual permits. Fort Bragg leaders are now charting a new path to continue the use of tents, while the rest of the county is going back to pre-pandemic rules for outdoor dining. In Fort Bragg, only a small percentage of businesses that once had tents or other temporary outdoor spaces still have them. This seems to be the case in the rest of the county also.

"If anything good came out of the pandemic, it was outdoor seating and dining in the central business district," said Mayor Bernie Norvell, one of two councilmembers on the committee.

"There were definitely some plusses that came out of COVID with its restrictions and people traveling to get away," agreed restaurateur Joshua Coate, speaking at the committee meeting and encouraging the committee to forge a path for tents. "We had a lot more tourists hitting the town [than expected], and we got to see some revenue straight up from that, which helped offset some of the financial pressures that all the restaurants went through."

Local governments across the nation have been debating whether to extend the regular use of tents, covered outdoor areas and even street dining. Should these European-like practices continue?

There have been legal challenges in some places, and the California legislature has just passed a bill with bipartisan support to make it easier for communities to continue outdoor dining following a controversy in Los Angeles over the issue. Authored by Assemblymember Jesse Gabriel (D – Woodland Hills), AB)1217 will preserve the current regulatory flexibility related to outdoor, patio, and al fresco dining.

The state tourist site for New Jersey lists all the cities that will or won't continue making outdoor dining easy despite the official end of the pandemic. Most businesses around the nation doing outdoor dining in 2020 and 2021 have ended the practice, which was granted only on a temporary basis.

The Fort Bragg Community Development committee, composed of Vice Mayor Jason Godeke and Mayor Norvell, met May 17 and recommended that the council continue to allow tents without charging any capacity fee (this is a one-time fee that new businesses pay to cover their fair share of tying to city water and sewer capability).Those in the audience at the committee meeting also favored the easier and increased use of outdoor dining. The full council heard about the recommendation on Monday but it won't be on the agenda until next month.

While the recommendation must be blessed by the entire council at a regular meeting, the council relies strongly on its committees to vet many issues and rarely goes against the recommendations of fellow councilmembers. The recommendation to the council is to allow businesses using outdoor tents or other similar outdoor dining facilities an additional six months, while the council works on a plan to make al fresco dining more permanent. "There's still a lot of people who are very concerned about being inside," Coate said. "And from a broader perspective, not just one restaurant, but our business community needs to be able to continue offering things to the tourists and to our locals that they want, which would include getting outside and enjoying our fresh air and not being close to people in a big crowd. There's a lot of consideration to be made on that front." Coate was former owner of the Purple Rose and is a longtime North Coast Brewing employee.

If Fort Bragg does encourage expanded use of tents and other outdoor uses, it would be ahead of the county and Mendocino village, where people have also been calling for expanded tent use.

The Mendocino Historical Review Board (which advises the county on planning and zoning matters related to the historical character of the village) held a meeting recently on the subject. The public was largely supportive of keeping tents, but the board deferred to Mendocino County as the authority. In Mendocino and the rest of county-controlled areas, businesses have now been given until Aug. 8 to apply for appropriate permits to retain any temporary modifications on a permanent basis. The city of Ukiah is following the lead of the county in returning to pre-pandemic outdoor dining rules. Jesse Davis, Chief Planning Manager for the City of Ukiah says there is a process for restaurants to establish permanent outdoor dining.

Several restaurants on Standley Street have recently completed the move to permanent outdoor dining, including Left Coast Seafood and Marketplace, Patrona and Cultivo, he said.

"The ordinance allowing these temporary business modifications has expired, and individuals who made temporary business modifications have 90 days to either remove any modifications or apply for appropriate permits to keep the modifications," a county press release states.

Nobody knew of any changes in Willits, where tents were also allowed during the pandemic. Community Development Director Dusty Duley was out of the office until next week to explain what plans for tents might be.

The issue is scheduled to be on the Fort Bragg agenda at a June City Council meeting.

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